

OFFENCES BY
INTERMEDIARIES.

OFFENCES RELATED TO
PROTECTED SYSTEMS.

OFFENCES OF
MISREPRESENTATION.

"OFFENCES BY INTERMEDIARIES".

intermediaries....

Δ. An intermediary is a middle person or platform that helps to pass or share information between two parties on the internet.

Δ. Example : YouTube, Facebook, WhatsApp, Google - these are intermediaries. They don't create the content but they host, share, or transfer it from one user to another.

Under section 67C of IT ACT 2008-

Δ. Intermediaries must preserve and retain information in the manner and duration specified by the Central Government.

Δ. If an intermediary knowingly violates this rule, they can face up to 3 years of imprisonment and a fine. The offence is cognizable and non-bailable under Section 77B of the IT Act.

Under Section 79 of the IT (Amendment) Act, 2008-

Δ. An intermediary is not responsible for third-party information, data, or communication links hosted or made available by them, as long as they follow the rules in sub-sections .

Δ.- "Third party information" refers to any information handled by an intermediary in their role as an intermediary.

**"OFFENCES RELATED TO
PROTECTED SYSTEMS"**

Protected systems....

Δ.A protected system is a very important computer system that is used for things like national security, public safety, or government operations.

Δ.Like a military computer network or power grid control system – if it gets hacked or damaged, it could harm the whole country.

Offences related to protected system

Δ . Section 70 as amended by the IT Act 2008

**provides for the offence relating to protected system
which directly or indirectly affectes the critical
information infrastructure.**

**Δ.Critical information infrastructure is important
computer systems that are essential for a country's
security, economy, public health, and safety.**

Δ.The section addresses offences related to protected systems that affect Critical Information Infrastructure.

Δ.The goal is to prevent damage or destruction to computer resources that could harm national security, economy, or public health.

Δ.The government can authorize individuals in writing to access protected systems.

Δ. The offence is cognizable and also non bailable under section 77 B of the act.

Δ. This section is serious offence which may be punished with in prisonment up to ten years and shal also be liable to fine.

Δ. Offenders face criminal prosecution, legal penalties, and imprisonment for compromising the integrity of protected systems.

**"OFFENCES RELATED TO
MISREPRESENTATION "**

Δ. The offence of misrepresentation refers to making false or misleading statements with the intent to deceive or mislead others.

Δ. In the context of Intellectual Property Rights (IPR), misrepresentation typically involves making inaccurate claims about the ownership, validity, or status of intellectual property, such as patents, trademarks, copyrights, or trade secrets.

Δ.Under IT Act 2000 Section 71 Deals with misrepresentation to obtain licenses or electronic signature certificates by providing false information or hiding crucial facts.

Δ.Penaltys are Offenders can face up to 2 years imprisonment a fine of ₹1 lakh or both.

THANK
YOU